Notification Waiver Determination

Export Trading Group Australia – pulses and grains business and facility in Mount Tyson, Qld

Acquisition	ETG Queensland Processing Pty Ltd, a subsidiary of Export Trading Group Australia Pty Ltd **(ETG Australia**), proposes to acquire certain business assets (including land) relating to the operation of a facility located in Mount Tyson QLD 4356 (**Mount Tyson Facility**) from Queensland Cotton Corporation Pty Ltd (**Queensland Cotton**), as described in the transaction documents provided as part of the application (the **Acquisition**). ETG Queensland Processing Pty Ltd applied for a notification waiver in respect of the Acquisition.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	28 April 2026

Parties to the Acquisition	ETG Australia is the sole shareholder of ETG Queensland Processing Pty Ltd and is a wholesale supplier (including exporter) of certain pulses and grains in Australia. Queensland Cotton operates a business of trading, conditioning, storing and grading certain pulses and grains and is a wholesale supplier (including exporter) of certain pulses and grains in Australia. Queensland Cotton owns and operates the Mount Tyson Facility, a receival, grading and container packing facility. The Mount Tyson Facility processes, grades, stores and packs pulses and grains owned by Queensland Cotton, which Queensland Cotton then supplies domestically and overseas. ETG Australia and Queensland Cotton are both wholesale suppliers of pulses and grains, focussing on chickpeas, mung beans and sorghum. Queensland Cotton will continue supply of trading, conditioning, storing and grading of sorghum, as well as other grains such as barley and wheat.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is a small horizontal overlap between ETG Australia and the pulses and grains business and facility operated by

	Queensland Cotton at the Mount Tyson Facility in the supply of pulses and grains, including chickpeas, mung beans and sorghum in Australia b. there are alternative wholesale suppliers of pulses and grains in Australia. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act